

STATE OF VERMONT
OFFICE OF PROFESSIONAL REGULATION

In re Edward Handy

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) Docket No. AO-MH01-0300
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OPINION AND ORDER

I. Facts and Background

This is the appeal of Edward Handy, a licensed clinical mental health counselor, from the Findings of Fact, Conclusions of Law, Opinion and Order (Decision) of the Board of Allied Mental Health Practitioners (Board) entered on March 13, 2000. In its Decision the Board found that Mr. Handy had engaged in unprofessional conduct in connection with a child custody evaluation he performed in 1992-93. The complainant was the father of the children whose custody was at issue. Handy was found negligent for not avoiding three significant conflicts of interest (Count I), grossly negligent in how he conducted the evaluation and reported its results to the Court (Counts III, V, VII and IX), and to have willfully made false reports or records in the practice of his profession (Count VIII).

The actions complained of occurred eight years ago and the professional conduct case against Mr. Handy has now spanned six and a half years. It is clear from the testimony of the investigator assigned to the case that all of the reasons for that delay will probably never be known. 12/20/99 Tr. at 120-160. However, it is known that the professional conduct complaint was

filed with the Office of Professional Regulation (OPR) in September, 1994, and was referred for investigation in October, 1994, already two years after the alleged misconduct. Findings #4 and #10. It is also known that in spite of the initial delay between the conduct complained of and the filing of the complaint, the investigation languished further. The investigator did not contact the complainant to initiate the investigation for seven months after the complaint was filed, nor did she contact the respondent for more than a year after that. 12/20/99 Tr. at 132-134. Because of many delays in the investigation, no charges were filed against the respondent until more than six years had elapsed from the time of the conduct complained of. 5/14/99 Notice of Charges. These delays appear to violate current professional standards. See *"Processing Unprofessional Conduct Complaints,"* OPR 11/18/99, Sec. IV, Investigative Process, §§ 1 and 11 ("The investigator will... contact the complainant within one month of the complaint being referred...."; "Investigations should usually be completed... within three months of receipt of assignment)."

The merits of the case were heard by the Board on November 18, 1999, December 6 and 20, 1999, and January 7, 2000. Counts I(4), II, IV, VI and X were dismissed by the Board and those decisions have not been appealed by the State. Counts I(1-3), III, V, VII, VIII and IX were found proved. Mr. Handy timely appealed the Board's Decision and oral argument was heard on October 12, 2000. At oral argument the State was represented by

its Assistant Attorneys General, Mathew Viens and Wendy Burroughs, and the appellant was present and was represented by his attorney, Gary McQuesten. As he has consistently maintained since the charges were filed, the appellant argued that the delays described above were unreasonable, and prejudiced his case. He also claimed that the Board's findings and conclusions are not supported by the evidence, and in particular, that gross negligence was not proved.

II. Standard of Review

Appellate Officer review is governed by 3 V.S.A. §130a, pursuant to which an Appellate Officer may reverse and remand a board's decision "if substantial rights of the appellant have been prejudiced" by an error of law. The Appellate Officer "shall not substitute his or her judgment for that of the board as to the weight of the evidence on questions of fact." *Id.* A board's findings must be affirmed if they are supported by substantial evidence, and its conclusions if rationally derived from the findings and based on a correct interpretation of the law. *Braun v. Board of Dental Examiners*, 167 Vt. 110, 114 (1997) (citations omitted). Evidence is substantial if, in looking at the whole record, it is relevant and a reasonable person could accept it as adequate to support the particular conclusion. *Id.* An Appellate Officer's concern is with the reasonableness of the Board's decision, not how the case might have been decided. *Id.* With these standards in mind the Decision is reviewed below.

III. Discussion

A. Laches

The appellant's first argument is that the Board's Decision must be reversed and the remaining charges against him dismissed under the equitable doctrine of laches. Under this doctrine, failure to assert a right for an unreasonable and unexplained period of time, when the delay has been prejudicial to the adverse party, renders it inequitable to enforce that right. *Stamato v. Quazzo*, 139 Vt. 155, 157 (1980). Application of the doctrine depends on the facts of each case. The appellant argues that the State's four and a half year delay in bringing charges against him was unreasonable, and that because of that delay he suffered prejudice. The State maintains that the delay was unavoidable, and in any case did not prejudice the appellant's defense.

Although the parties and the Board have not debated the point, the question of whether the doctrine of laches even applies to professional regulation proceedings has not been decided in Vermont. Other jurisdictions are not entirely in accord, although a substantial number have held, or assumed for decisional purposes, that some form of the doctrine may be applicable. See *State ex rel. Webb v. W.Va. Bd. of Medicine*, 506 S.E.2d 830, 833 (W.Va. 1998); Annotation, *Applicability of statute of limitations or laches to revoke or suspend license to practice medicine*, 51 A.L.R. 4th 1147; Reaves, *The Law of Professional Licensing and Certification*, (3d Ed. 1997) at 273-278.

Courts that have explored the issue have generally recognized that no firm boundary line can be drawn to judicially define what constitutes unreasonable delay in such a proceeding, absent a statute of limitations that expressly applies. *Id.* "[L]aches...cannot be imputed by the mere passage of time. It must be determined from all of the circumstances of the case, one of which must be the existence of harm occasioned by the delay." *Appeal of Plantier*, 494 A.2d 270, 272 (N.H. 1985)(quoting *Tighe v. Commonwealth State Board of Nurse Examiners*, 397 A.2d 1261, 1262 (1979); see also *Fahmy v. Medical Bd. of California*, 45 Cal.Rptr.2d 486, 489 (Cal.App 2 Dist. 1995). On this question the reasoning of the Court in *Webb v. W.Va. Bd. of Medicine* is most persuasive:

The argument that there should be a place for the doctrine of laches in...disciplinary cases rests on fundamental fairness. The privilege to practice [a profession] is a valuable one. To have that privilege threatened in a proceeding where one is severely prejudiced by an unreasonable delay not of one's own making could be very unfair.

However, it is also important to recognize that...discipline proceedings are not the sort of traditional, common-law adversarial proceedings in which doctrines like laches evolved, to balance the rights and interests of purely private parties. In a...discipline proceeding, the interests of the state, the general public and the...profession are the primary concerns.

....

...[W]e hold that the doctrine of laches may be applicable in [professional disciplinary] proceedings.... However, in applying the doctrine of laches in such proceedings, the interests of the state, the public and the...profession must be given substantial consideration, and the doctrine should be applied narrowly and conservatively and in such a fashion as to not unfairly impair the board's duty and responsibility to supervise and regulate the...

profession for the protection of the profession and the public.

Webb v. W.Va. Bd. of Medicine, 506 S.E.2d at 833-834.

Assuming the doctrine to be applicable, the circumstances necessary to support an argument based on laches involve questions of fact, with the ultimate conclusion a question of law. *Laird Properties v. Mad River Corp.*, 131 Vt. 268, 282 (1973). "Laches is so much a matter of discretion by the lower court that action by that court should not be disturbed unless clearly shown to be wrong." *Id.* The appellant bears the burden of proving both that the delay was "unreasonable and inexcusable," *Quazzo v. Quazzo*, 136 Vt. 107, 115 (1978)(quoting *Turner v. Turner*, 131 Vt. 253, 257 (1973)), or "unexplained," *Stone v. Blake*, 118 Vt. 424, 428 (1955), and that it disadvantaged him. *Quazzo v. Quazzo*, 136 Vt. at 115.

The appellant's frustration with the delays in this case is certainly understandable. The delay between the time the conduct occurred and the time the complaint was filed would have been difficult enough to deal with had the matter then been promptly pursued, but compounding the problem was the investigator's failure to give Mr. Handy an opportunity to comment on the charges until two more years had passed. The case was not heard by a judicial body until a full seven years after some of the conduct complained of.

Were these delays unreasonable or unexplained? The Board said no, concluding they were unavoidable:

Because respondent is well-known throughout the Vermont mental health care community, Board members who would customarily serve on either the Investigating Committee or the Hearing Panel recused themselves. Replacements who did not know respondent had to be found. Some of the witnesses moved out of the state. Transcripts had to be obtained from the M.'s divorce proceeding in court. All of these circumstances added time to the investigation of this already complex case.

Decision at 18. This conclusion was in turn based on the following finding:

The delay in filing charges was caused in part by numerous conflicts of interest stemming from respondent's position as a managed care administrator for Fletcher Allen. All licensee-members of the Board recused themselves from this case because of conflicts of interest. The Office therefore had difficulty finding a licensed mental health professional to serve on the Investigating Committee as a reviewer for the case. The Office also had difficulty obtaining court transcripts and the services of an expert witness for the Investigating Committee. In addition, the Office case manager had to be assigned. Further delay in investigation occurred when two of the four therapists referred to in Counts VI and VII of the charges moved out of state.

Finding #5.

While these obstacles seem overwhelming at first glance, and no doubt took time to overcome, a close examination of the evidence in this case does not support the Board's conclusion that delay of this magnitude was reasonable.

First, it was the testimony of the investigator that although there were problems finding Investigating Committee members, her ability to move forward with the investigation was not dependent on OPR's ability to constitute the Committee. She stated: "I don't really get directions from them, I go out and investigate the case." 12/20/99 Tr. at 145. As to the related difficulty of constituting a Hearing Panel, those panels are not

constituted until *after* charges are filed and it is known that a hearing will be necessary. "*Processing Unprofessional Conduct Complaints*," OPR 11/18/99, Section VI, Disciplinary Proceedings. The fact that the respondent was well known and that this caused some members of the Panel to recuse themselves would not have accounted for the delay.

Second, although two of the four mental health professionals sought by the investigator had indeed moved out of town, the investigator's testimony was that she was able to locate them, 12/20/99 Tr. at 129, and contacted them as quickly as she contacted the two who remained in state. *Id.* at 136. The evidence was that none of the four was contacted until 1997, five years after they had any contacts relevant to the case. *Id.*

Third, there was no evidence to support the Board's finding that it was difficult to obtain the court transcript of the divorce hearing. The testimony on this point was simply that certain steps had to be taken to obtain it. *Id.* at 121. Indeed, at oral argument the State conceded that the delay had not been in *obtaining* the transcript, but in having the investigating team look at it, Oral Argument Tape #2, Side #1 at 58, a point on which the Board made no finding.

Finally, it was clear from both the investigator's testimony and that of the State's expert that a case manager was in place, and had engaged an expert and obtained his opinion, three years in advance of the filing of the charges. 12/20/99 Tr. at 12, 149.

However, it is the investigator's testimony that is perhaps most persuasive on both the unexplained nature of the delay and its unreasonableness. In answer to a question from Handy's attorney, asking why there was a seven month delay before even the basic step of contacting the complainant was taken, the investigator replied, "...our office was going through some changes. There was a period where we had a tremendous backlog of cases that might have happened during that period, *I really can't say.*" 12/20/00 Tr. at 132 (emphasis added). When asked if she could explain why Handy wasn't contacted for fifteen months after that, her reply was simply, "No." *Id.* at 135. The Board's conclusion that the delay was reasonable is simply not supported by the evidence.

However, the inquiry pertaining to the appellant's laches argument does not end there. In order to prevail under laches, Handy must also show that he was prejudiced by the delay, and that on balance the prejudice to him outweighed the State's interest in protecting the public. On all the counts remaining in this case his argument is that the delay in bringing the case to hearing prejudiced his ability to defend himself because witnesses - including he himself - could not remember key points. To judge the merits of this argument an examination of the evidence relied upon to prove each count is required. If resolution of a charge turned on the credibility of witnesses' testimony, the unreasonable delay may well have been prejudicial. However, as noted in *Plantier*, the result may be different if the

evidence relied upon was documentary rather than testimonial. "Because documentary evidence 'is not the kind of evidence that is lost or becomes unreliable as time passes,' disciplinary actions turning on evidence that is documentary in nature are less likely to be prejudiced by the passage of time." *Appeal of Plantier*, 494 A.2d at 273(citing *Raymond v. Eli Lilly & Co.*, 371 A.2d 170, 176(N.H. 1977)).

1. Count I

The laches argument is quickly dispensed with as to Count I. The Board found Handy to have committed unprofessional conduct by not avoiding three significant conflicts of interest: using office space leased by the complainant's wife's attorney, undertaking the evaluation while working at the same school as the complainant, and proceeding with the evaluation when his daughter had recently had the complainant as a teacher.

There was ample and uncontroverted evidence from which the Board could have found the facts it did in all three areas. Handy did not contest the underlying facts, and the only question before the Board was a legal one, whether the actions complained of constituted conflicts of interest sufficient to support a misconduct charge. There is no indication that delay played any factor in the Board's determination of that question in a manner adverse to Mr. Handy.

2. Count III

There is also no basis under the doctrine of laches for attacking the Board's conclusion that Handy misinterpreted the results of personality tests he gave the complainant and his wife, and reported incorrect information about those results to the Court. The Board had before it the original test results, Handy's written evaluation report which was submitted to the Court, and the transcript of his testimony at the custody hearing on April 7, 1993. Appellant's Exhibits 1, 5 and 8. All of the relevant facts found by the Board in support of its conclusion on this issue were based on these documents, or on the contemporaneous opinions of the parties' respective experts as to how the results *should* have been reported and why. Because all of the relevant information was either documentary or contemporaneous, delay played no role in shaping the facts found by the Board, nor in the conclusion it reached.

3. Count V

Count V concerns Handy's failure to observe the complainant with his children during the course of the evaluation, a fact he did not dispute. Based on expert testimony, the Board found that the standard of care in a child custody evaluation requires an evaluator to observe each parent interacting with the children at least once. Although Handy observed the complainant's wife interacting with the children, a scheduled meeting to observe the complainant with the children never took place, for reasons not clearly established.

On this count delay was no doubt a factor in preventing the Board from getting a full picture of what had occurred.

A letter was introduced into evidence indicating that an observation had been scheduled for January 7, 1993 at 3:00 pm. State's Exhibit B. The letter was from the complainant's wife's attorney to his client, and was copied to the complainant's attorney. *Id.* However, none of the witnesses - not Handy, the complainant, the complainant's ex-wife or her attorney - could explain why the observation never took place. Handy had no recollection of who might have cancelled the appointment. 12/6/99 Tr. at 122. The complainant testified both that he didn't think Handy had ever asked to observe him with the children, 11/18/99 Tr. at 91, and that he knew he had never been offered the opportunity. *Id.* at 92. He said he didn't remember seeing the letter setting up the appointment, *id.* at 93, and based on his 1993 appointment book testified that no meeting had been scheduled with him. *Id.* at 94. The complainant's ex-wife testified that she had no direct knowledge of whether her husband and the children had ever met with Handy together. 1/7/00 Tr. at 212. Her attorney confirmed that he had sent a copy of the letter scheduling the January 7th meeting to the complainant's attorney, but consistent with professional ethics had not sent a copy directly to the complainant. *Id.* at 155-56. The attorney's expectation was that Handy would observe the complainant with his children on January 7th unless the complainant's attorney altered that arrangement. *Id.* at 187.

Notwithstanding the mystery surrounding the question of what happened to the January 7th appointment, all parties agreed that the custody evaluation concluded without Handy having observed the complainant with his children. Critical to the appellant's laches argument, it was on this narrow and certain point that the Board's conclusion turned. The Board found that Handy had a duty to observe the complainant with his children, that he should have seen to it that the meeting actually took place, and that his failure to do so showed indifference to the duty owed the family and the Court. Findings #86-#88. Delay may have made it impossible to determine *why* the observation never occurred, but did not bear on any of these key findings. Therefore, there is no ground for reversal based on laches.

4. Count VII

Count VII charged Handy with gross negligence for characterizing, in his written evaluation report and in his testimony, the depth and purpose of his contacts with four mental health professionals in a manner that was not substantiated by either their records or his. State's Amended Charges, Count VII. In finding the charge proved, the Board found that in his written evaluation Handy indicated that he had received information from "third party informants." Finding #97. The Board also found that Handy had testified to the Court in a way that gave the Court the misleading impression that his profile of the complainant's personality was firmly supported by information he had received from four mental health professionals. Findings #100 and #101.

Finding child custody evaluators to have a duty to scrupulously avoid skewing or misrepresenting information in their reports in any way, Finding #104, the Board concluded that since two of the four professionals could not remember for certain whether they discussed the case with Handy, one remembered discussing it but said he provided no input on those issues, and the evidence with regard to the fourth consisted only of Handy's brief, undated note, the impression Handy gave the Court was misleading. Finding #102.

As to the written evaluation report itself, Handy made no mention of mental health professionals anywhere in the report, only reporting contact generally with "third party informants." Appellant's Exhibit 1 at 2. At the custody hearing, however, the following exchange took place between Handy and the complainant's wife's attorney:

Q: During the assessment did you acquire any information from third party informants to support the accuracy of your [personality] profile [of the complainant]?

A: I did, yes.

Q: And from whom?

A: From a variety of sources. There were four mental health clinicians in the central Vermont area that had been involved with the family individually or in couples were school personnel, dieticians, you know, people who had knowledge about the family [sic].

Q: And from, take them one at a time, from the clinicians, did they describe him in a way that fit with the characteristics that you've described?

A: I believe the profile is very accurate in regards to the third party informants that I have, yes.

Appellant's Exhibit 17, at 12.

Six and a half years after the conduct complained of, Handy was re-examined on the issue before the Board. He testified from notes in his case file that when he asked the complainant and his wife for names of people he could speak to about them, they gave him the names of four mental health clinicians, Brian Lewis, Lynn Phillips, Anne Unangst and Bob Buchicchio, among other sources. 12/6/99 Tr. at 115-119. Handy further testified from his case notes that he contacted all four individuals. *Id.* at 116-117; see also Appellant's Exhibits 3 at 70 and 4 at 115. He had specific notes from his phone calls to Phillips and Lewis, and these notes were in evidence. Appellant's Exhibit 6 at 227-228. In both cases the notes, though brief, contain information consistent with the profile of the complainant that Handy presented to the Court. See and compare Appellant's Exhibits 1 and 17. Handy did not recall the conversation with Phillips, but did recall talking to Lewis, though what he recalled about the conversation was not on point. 12/6/99 Tr. at 118-119. He did not recall talking to Unangst or Buchicchio, but testified that if they had said anything "pertinent," he would have made a note. *Id.* at 118.

Phillips was not available to testify, but a letter she had written in 1998 was introduced into evidence. In it she stated that while she did not recall a 1992-93 phone call from Handy about the complainant, neither could she say with certainty that it did not occur. Appellant's Exhibit 12. Phillips noted that she spoke to Handy frequently during that period of time, and did

have a note in her file from the complainant giving her permission to speak to him. *Id.*

Buchicchio and Unangst testified by phone. Buchicchio stated that he had been contacted twice about the case by Handy, first to refer the couple for work on their communication skills, and later to see if he had any information to add that would be helpful. 11/18/99 Tr. at 40. Buchicchio testified that he had nothing to add. *Id.* Unangst testified that she had no recollection of a call from Handy, but could not say for certain that it hadn't occurred. *Id.* at 52.

What little documentary evidence exists, namely Handy's notes of the Phillips and Lewis phone calls, suggests that at least two of the four professionals corroborated the profile he came up with. Neither could expand on what they said that would have supported Handy's notation, but neither did they deny its accuracy, because they couldn't recall the conversation. Appellant's Exhibit 12; 12/20/99 Tr. at 125. As for Unangst, neither Handy nor Unangst was able to recollect a call, let alone its content, although Handy's notes showed that a call had been made. This left open the possibility that Unangst also did not contradict Handy's profile, even if she made no pertinent additional comments of her own. Only Buchicchio was certain he had provided no information one way or another, not inconsistent with Handy's testimony to the Court that his profile of the complainant was "very accurate" when compared to how an unspecified number of clinicians described him.

On this evidence it cannot be said that the extraordinary delay in the case was not prejudicial to Mr. Handy. It was not that the witnesses were unable to reconstruct exact conversations, as the Board characterized the problem, *Decision* at 18, but rather that the conversations could not be recalled at all. Indeed, in connection with a related count that it dismissed, the Board found the evidence inconclusive as to the information Handy had received from the four clinicians. Finding #96. If the Board could not make specific findings on what information Handy received, it is difficult to see how it could then find that he skewed or misrepresented that information in his report and his testimony.

To find Handy guilty of gross negligence on the basis of such failed recollection is unfair. While it is certainly possible that the Board's conclusions on Count VII are correct, Handy's ability to explain and defend the statements he made in court - either through his own testimony or that of the clinicians - was clearly prejudiced by the delay that occurred in the case. Because his testimony was unique to the family he was evaluating, to the question he was asked and the moment in time that he answered, no danger to the public will result from a reversal of the Board on this point.

5. Count VIII

Count VIII charged Mr. Handy with willfully making or filing false reports or records based on his testimony at the custody hearing that "[t]hroughout [the complainant's] teaching career

there had been some incidents documented by the school that showed [the complainant] as being 'somewhat rigid,' when in fact Handy had never seen the contents of the complainant's school personnel file and "a review of the file shows that the information... does not exist.... State's Amended Charges, 11/10/99, Count VIII.

As was the case in Count III, the relevant evidence before the Board on this Count was largely documentary. The Board had before it both the transcript of the custody hearing and the contents of the complainant's school personnel file. In addition, at his professional conduct hearing Handy expressed no difficulty recalling the basis for his testimony at the custody hearing, nor did he deny that he had not reviewed the file. 12/6/99 Tr. at 28-34, 43-44 and 73-74; 12/6/99 Tr. at 134-35; 11/18/99 Tr. at 119-124. There is no reason to believe that the delay in prosecuting the case had any bearing on the Board's determination of this Count.

B. Sufficiency of the Evidence

Mr. Handy's second argument is that the Board's findings and conclusions on each of the remaining counts were not supported by substantial evidence.

1. Count I

As previously discussed in this Opinion, in Count I the Board found Handy to have committed unprofessional conduct by not avoiding three significant conflicts of interest. These

conflicts were (1) using office space sublet by a mediator from the complainant's wife's attorney, (2) working at the same school as the complainant, and (3) having recently had the complainant as his daughter's teacher. Each conflict is reviewed separately below.

(a) Use Of Office Space

With regard to Handy's use of the office space, the findings made by the Board were: (1) that Handy regularly used the space for work, Findings #20 & #21; (2) that the office was down the hall from the attorney's office and was sublet from him by a mediator, Finding #22; (3) that the complainant's wife had an emotional reaction to using the space because it had been her midwife's office, Finding #23; and (4) that the meetings were held at this office, rather than at Handy's own office in Burlington, for the convenience of the parties. Finding #24. Handy argues that these findings fail to support a violation of professional standards. Appellant's Brief at 16. The State maintains that as a member of the American Psychological Association (APA), Handy had a duty to avoid dual relationships that could impair his professional judgment or increase the risk that his client would be exploited. State's Brief at 24.

The APA cautions psychologists to "avoid dual relationships that could impair their professional judgment or increase the risk of exploitation." *APA Ethical Principles for Psychologists*, Principle 6(a). For guidance it provides the following examples:

Examples of such dual relationships include, but are not limited to, research with and treatment of employees, students, supervisees, close friends, or relatives.

Id. Vermont law establishes similar boundaries:

(a) Unprofessional conduct means....

(6) entering into an additional relationship with a client, supervisee, research participant or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations;

26 V.S.A. §3271(a)(6).

The Board's findings regarding the office space are insufficient to support a violation under these standards. No such dual relationship was found to exist by the Board, nor did the Board find that the circumstances it did establish impaired Handy's objectivity or interfered with his professional obligations in any way. The Board found that Handy used the space "regularly," but not that he had any impermissible relationship with the attorney, or derivatively, with the complainant's wife. Nor could such a finding have been made on this record.

Based on the uncontroverted evidence before the Board, at worst the two men were professional acquaintances who, outside of their professional contacts in this case, saw each other occasionally to say hello. See 1/7/00 Tr. at 185. This is not the stuff that prohibited dual relationships are made of under the standards enunciated above. There was nothing to support the Board's conclusion that Handy's professional judgment was impaired, or his professional obligations interfered with by his

having met with the couple, at their election, at a location chosen for its convenience for them, without objection by them or by the attorneys who represented them. See 12/6/99 Tr. at 91-93, 148-149; 1/7/00 Tr. at 195. To the extent that Count I was proved on this point it must be reversed and remanded to the Board for reconsideration.

(b) Association At School

The same cannot be said about Handy's work at the school where the complainant was employed. The Board found that Handy and the complainant were co-workers, Finding #25, and that in the course of his work at the school Handy "heard things" about the complainant which influenced his evaluation. Finding #27. There was ample evidence to support this finding, including Handy's own admission. 12/6/99 Tr. at 33. In fact, it was Handy's testimony that teachers, paraprofessionals and students alike felt free to come up to him and make comments about the complainant. *Id.* at 28, 30-31. The information thus received was not balanced by any similar exposure to unsolicited comments in the complainant's wife's workplace. *Id.* at 34. It is clear that Handy's relationship as a co-worker of the complainant's placed him in a position where his objectivity could be impaired and his professional obligations interfered with. The Board's conclusion on this point is well founded.

(c) Daughter As Student

The Board found in the third part of Count I that Handy had committed unprofessional conduct by proceeding with the

evaluation when his daughter had recently had the complainant as a teacher. Finding #35. This had occurred during the school year just prior to the time the evaluation commenced. Finding #28. It was also uncontroverted that at some point prior to the time the evaluation was completed, Handy overheard his daughter and her friends describe the complainant in less than flattering terms. Finding #29 at 4-5; 12/6/99 Tr. at 35-36. However, these two findings were as far as the Board went on this issue, and it wasn't far enough.

Given the legal standard set out above, it is doubtful that the prohibition on dual relationships would even apply to the situation where an evaluator is the father of a child who has the potential client as teacher. While many evaluators might choose to avoid such a situation, the relationship complained of is a far cry from the close and direct relationship of close friends or relatives, teacher/student, or employer/ employee. In addition, even assuming that a counselor should not also be the father of a child who has the potential client as a teacher, the relationships to be avoided under the law are *additional* relationships, that is, relationships existing at the same time. 26 V.S.A. §3271(a)(6). Although Handy's daughter had the complainant as a teacher prior to the time he began the evaluation, there was no evidence presented and therefore no finding to be made by the Board that she either had him as a teacher at the time he took on the evaluation, or would have had him as a teacher again while the evaluation was in progress.

The fact that Handy overheard his daughter and her friends talking about the complainant during the course of the evaluation is misleading, and also does not support a conclusion of misconduct. Again, while many evaluators working in small town Vermont might choose to decline an evaluation involving people who merely live nearby, there is no requirement in the law that they do so, and they can't be expected to anticipate what they might later overhear if they don't.

2. Count III

Count III charged Mr. Handy with gross negligence for deliberately misinterpreting test results and reporting incorrect information about those results and the validity of the test to the Court. Specifically, the Board found that Handy had breached a duty he owed the Court to indicate his reservations about the validity and reliability of the results, to explain how he reached his conclusions and from what sources, and by distorting a key sentence in his written evaluation report. Findings #46-78.

The Board made thirty-three findings of fact in support of its conclusions on this Count, but the two critical issues were Handy's description of the complainant as "sometimes domineering," in contradiction to his test type, Findings #51-55, and his failure to explain to the Court the complainant's "fake good" score, which affected the reliability, and hence the weight, to be accorded the results. Findings #54, 58-60.

There was ample evidence from which the Board could have found professional misconduct on this basis. Principle 8 of the

APA Ethical Principles, "Assessment Techniques," states as follows:

c. In reporting assessment results, psychologists indicate any reservations that exist regarding validity or reliability because of the circumstances of the assessment or the inappropriateness of the norms for the person tested. Psychologists strive to ensure that the results of assessments and their interpretations are not misused by others.

State's Exhibit Q. In addition, the State's expert, Dr. Levine, testified that Handy had violated the standard of care by his "outright distortion" of the test results without explanation. 12/6/99 Tr. at 200. The Board apparently agreed with Levine's assessment that Handy's report went "well, well over the line....," *id.*, and violated his primary responsibility "to specifically talk to the threats to validity." 12/20/99 Tr. at 55. Handy's own expert, Dr. Stunkel, stated that "the standards for forensic psychologists who report to the court are to indicate the limitations and new data." 12/7/00 at 103. No error is found in connection with Count III.

3. Count V

Count V charged Handy with unprofessional conduct for failing to observe the complainant interacting with his children, and the Board found the charge proved. Finding #85.

As was true in Count III, there was evidence before the Board from both the State's expert and the appellant's expert from which the Board could have found the standard of care breached in this regard. Dr. Levine testified that "it is of central importance to obtain data on the interaction of the

children with the parents." 12/6/99 Tr. at 242. Dr. Stunkel testified in answer to a question from the Board, whether it was important to see each parent at least once interacting with the children, "[t]hat's certainly the idea [sic] situation, at least once." 1/7/00 Tr. at 148. It was uncontroverted that the complainant's wife had been so observed, but not the complainant.

Mr. Handy argues there is no professional rule, regulation, standard or other guideline cited as evidence that suggests that it is *absolutely necessary* that any child custody evaluator observe each parent separately interacting with the children, and technically he is correct. However, the Board found a duty under the facts of this case to make sure that the observation took place. Finding #87. It was a reasonable finding based on the expert testimony and the other evidence before the Board.

4. Count VII

Because this Opinion recommends that Count VII be dismissed based on laches, it does not examine as a separate matter the sufficiency of the evidence to support the Board's conclusions. It is of no further use to assess the strength of evidence fatally damaged by the passage of time. However, it should be noted that the State's claim that Mr. Handy testified he received "significant information" from four clinicians is not supported by the record. See State's Brief at 37.

The question asked of Handy was whether an unspecified number of clinicians had described the complainant in a way that fit with the characteristics he had described to the court; his

somewhat unresponsive answer was, "I believe the profile is very accurate in regards to the third party informants that I had." Appellant's Exhibit 17 at 12. Handy did not specify which third party informants he was referring to, nor how many. *Id.* But even assuming his answer pertained only to the clinicians and to all four of them, it is hardly a statement that they affirmatively conveyed "significant information." Handy's statement would be accurate even if the conversations had consisted only of his telling each clinician that he found the complainant to be somewhat rigid and domineering, and the clinicians replying "yes."

5. Counts VIII and IX

Counts VIII and IX both concern Handy's testimony to the Court on the existence of school-related corroboration of his opinion as to the complainant's personality traits. Count VIII charges Handy with "willfully making or filing false reports or records" by testifying "that throughout [the complainant's] teaching career there had been some incidents *documented by the school* that showed [the complainant] as being 'somewhat rigid.'" Amended Charges at 4 (emphasis added). Count IX charges him with gross negligence for the same testimony, in light of the fact that "[he] admits that this testimony was based on assumptions drawn from information he received from third party informants, rather than a review of [the complainant's] Personnel file." *Id.*

Mr. Handy's entire testimony to the Court on school-related corroboration of his conclusions regarding the complainant's

personality consisted of the following exchange, a portion of which has already been set out in connection with his laches claim:

Q During the assessment did you acquire any information from third party informants to support the accuracy of your profile?

A I did, yes.

Q And from whom?

A From a variety of sources. There were four mental health clinicians in the central Vermont area that had been involved with the family individually or in couples were school personnel, dieticians, you know, people who had knowledge about the family [sic].

Q And from, take them one at a time, from the clinicians, did they describe him in a way that fit with the characteristics that you've described?

A I believe the profile is very accurate in regards to the third party informants that I have, yes.

Q Okay. And what the school- is that also true?

A That's true.

Q And were you advised of any incidents within the school that indicate inflexibility or dominance by him?

A Throughout [the complainant's] teaching career there have been some incidents that the school would document as being somewhat rigid in interpretation on his part, yes.

Appellant's Exhibit 17 at 12-13.

In finding the charges proved on both counts, the Board found that a reasonable person would have inferred from Handy's testimony that he had reviewed documents in official school files, and that the incidents he referred to had occurred over a considerable period of time. Finding #108. Since the complainant's wife had advised Handy of some difficulties the

complainant had at school, and two letters from the complainant regarding those difficulties were later discovered in his personnel file, the Board concluded that the letters - and only the letters - must have been the documentation Handy was referring to. Finding #111.

The issues raised in Counts VIII and IX present very close questions. In the end, however, for the following reasons, the Board's conclusions must be rejected and both counts reversed and remanded to the Board with the recommendation they be dismissed.

First, it is clear on the face of the evidence that Handy did not testify as charged in Counts VIII and IX. The essence of both charges was that he testified that throughout the complainant's teaching career there had been some incidents documented by the school that showed the complainant to be somewhat rigid. Handy never said this, testifying only that there had been some incidents that the school *would* document, presumably if asked. The distinction is important because the Board's findings focus so overwhelmingly on the letters found in the complainant's personnel file long after Handy testified to the Court. See Findings #111-#115. But Handy never referred to tangible documents in the complainant's personnel file or elsewhere as supporting his profile of the complainant's personality, or as being the type of documentation school personnel would provide if asked. By arguing that Handy "testified at court that there were various documents in [the complainant's] school file supporting his contention that the

complainant was rigid, domineering, and inflexible," State's Brief at 40, the State exaggerates and distorts Handy's testimony in its effort to show willful misrepresentation.

Second, while the testimony as a whole was ambiguous and could have been read as the Board read it six years later in the context of a disciplinary hearing, in the context in which the remarks were originally made the testimony could just as easily have been in reference to those third party informants who were "school personnel." It is this second interpretation that Handy maintains is the correct one. He testified repeatedly and consistently that while he had not received anything *officially* from the school, he had often received unsolicited and unofficial information. See, e.g. 12/6/99 Tr. at 43, 73-74. The Board found this to be true, Finding #27; see also Opinion and Order, *supra*, at 21-22, but then ignored its own finding in reaching the conclusion it did that Handy's testimony had been based only on what the complainant's wife told him. See Finding #111.

Third, and giving some credence to the appellant's argument that the Board disliked him and chose to attribute negative motives to his actions without any evidence of such motives, Appellant's Brief at 22, the Board rests its conclusion on Count IX in part on Finding #119. This finding correctly sets out that prior to the custody hearing Handy received a long letter from the complainant that was highly critical of his conclusions and his recommendation that the complainant's wife be granted custody. However, the Board then goes on to state: "[a]

reasonable conclusion to draw from this would be that respondent was somewhat antipathetic to [the complainant] by the time of the court hearing." Finding #119. This conclusion is entirely without support. Nowhere in this voluminous record is there any suggestion that it is reasonable to conclude that a professional would react to a letter like the complainant's with antipathy, or that Handy did so in this case. Nor is there any evidence that Handy harbored ill will toward the complainant, or had any reason to distort the results of his evaluation.

Finally, In Findings #120 and #121, the Board accuses Handy of distorting and inflating the information he obtained about the complainant as a teacher into a general opinion about the complainant's personality. Although the Board goes on to properly establish the duty owed by an evaluator to the Court, see Findings #122-#125, its conclusion that Handy breached that duty on this basis is flawed. The evidence before the Board was that Handy's opinion of the complainant's personality, as expressed in both his written evaluation and his testimony to the Court, was based on information obtained from clinical interviews, psychometric evaluation, third-party informants, and materials provided by the complainant himself. Appellant's Exhibits 1 and 17. That this was the case was uncontroverted. The Board had no basis for finding Handy's opinion of the complainant's personality traits to be based on school-related corroboration alone.

In a professional conduct hearing, it is the State's burden to prove by at least a preponderance of the evidence each of the facts alleged. See In re Smith, 169 Vt. 162, 172 (1999)(due process demands no more than preponderance standard, although clear and convincing standard may apply where allegations of intentional misrepresentation are analogous to civil fraud). The State has not met its burden on these Counts. There is simply insufficient evidence to find Mr. Handy's testimony at the custody hearing on school related corroboration to have amounted to willful misrepresentation or negligence.

C. Gross Negligence

Finally, Mr. Handy argues that all of the Board's findings and conclusions of gross negligence must be reversed for lack of evidence that any of his deviations from acceptable standards rose to that level of misconduct, and for lack of a trier of fact qualified to establish that standard itself. Appellant's Brief at 25.

The standard of proof in a professional misconduct case has been established by the Vermont Supreme Court. The Court has said,

grossly negligent conduct is more than a mere error of judgment, momentary inattention, or loss of presence of mind...Rather, it is the failure to exercise even a slight degree of care and an indifference to the duty owed....

Braun v. Board of Dental Examiners, 167 Vt. at 113-114. As to how gross negligence is to be determined the Court said,

[T]here is no clear dividing line between ordinary and

gross negligence; whether certain behavior was grossly negligent hinges on the particular circumstances of the case. Hardingham v. United Counseling Serv. of Bennington County, Inc., 164 Vt. 478, 481 (1995). Because such a finding requires applying the facts to a reasonableness standard, we defer to the fact finder's ability to determine whether particular behavior rose to the level of gross negligence. See *id.* at 487.

Additional deference is owed [where] the action arose out of an administrative proceeding in which a professional's conduct was evaluated by a group of his peers.

Braun v. Board of Dental Examiners, 167 Vt. at 114.

It is clear under Braun that contrary to the appellant's assertion, expert testimony is not required to establish gross negligence. Once the standard of care is properly established, as it was in this case through the testimony of two experts, the decision as to whether that negligence is "ordinary" or "gross" is left to the trier of fact. Even had the trier of fact not been a body comprised of Mr. Handy's peers,¹ its judgment would be upheld absent a showing that its conclusions were not rationally derived from its findings and based on a correct interpretation of law. *Id.* Except as otherwise set out in this Opinion, there is no reason to reverse on this ground.

For all of the reasons stated above, the Board's Decision is hereby:

¹As the State points out in its Brief, there is no evidence in the record that the Board was not properly comprised of Mr. Handy's peers. State's Brief at 43. The composition of the Board of Allied Mental Health Practitioners is determined by statute. 26 V.S.A. §3262a. Absent evidence to the contrary, the Board is presumed to have been constituted in accordance with the statutory requirements. Vt. Ass'n of Realtors, Inc. v. State, 156 Vt. 525, 530 (1991).

1. Affirmed as decided on Counts III and V;
2. Reversed and remanded on Counts I(1), I(3), VII, VIII and IX with the recommendation that those Counts be dismissed; and
3. Remanded to the Board for review of the sanction imposed in light of the views expressed in this Opinion.

SO ORDERED.

DATED at St. Johnsbury, Vermont this 8th day of March, 2001.



Dinah Yessne, Esq.
Appellate Officer

Date entered: 3-16-01

7/100

STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

Docket No. MH01-1094

In re Edward W. S. Handy

} Hearings held at
} Montpelier, Vermont
} November 18, 1999
} December 6, 1999
} December 20, 1999
} January 7, 2000

PRESENT: Lauren G. Berrizbeitia, Hearing Panel Chair
Barbara P. Anagnos, LCMHC, Ad Hoc Hearing Panel Member
Jan G. Fossum, PE, JD, Ad Hoc Hearing Panel Member
Emma J. Pudvah, Ad Hoc Hearing Panel Member
Philip W. Sharp, LCMHC, Ad Hoc Hearing Panel Member

APPEARANCES: Wendy A. Burroughs, Assistant Attorney General
Mathew Viens, Special Assistant Attorney General
for the State of Vermont

Gary D. McQuesten, Esq.
for Respondent

Edward W. S. Handy
Respondent

FINDINGS OF FACT, CONCLUSIONS OF LAW, OPINION, AND ORDER

This matter came before the Board of Allied Mental Health Practitioners (Board) on a notice of charges filed by the State against Edward W. S. Handy (respondent). Having heard the evidence on the charges, the Board has determined that the findings of fact and conclusions of law set forth below are supported by the preponderant weight of the evidence.

Findings of Fact

General Findings

1. Respondent Edward W. S. Handy is a clinical mental health counselor licensed by the Board. He holds license number 068-0000048.

2. Respondent is the managed care leader for behavioral sciences for Fletcher Allen Mental Health Services in Burlington. As such, he is in a position to control selection and payment of a panel of 227 mental health care providers in Vermont.

3. Because of his job, respondent is well-known in the mental health care community in Vermont.

4. The complaint in this case was filed with the Office of Professional Regulation (Office) in October 1994. Charges were filed in May 1999.

5. The delay in filing charges was caused in part by numerous conflicts of interest stemming from respondent's position as a managed care administrator for Fletcher Allen. All licensee-members of the Board recused themselves from this case because of conflicts of interest. The Office therefore had difficulty finding a licensed mental health professional to serve on the Investigating Committee as a reviewer for the case. The Office also had difficulty obtaining court transcripts and the services of an expert witness for the Investigating Committee. In addition, the Office case manager originally assigned to this matter had a conflict of interest, and another case manager had to be assigned. Further delay in investigation occurred when two of the four therapists referred to in Counts VI and VII of the charges moved out-of-state.

6. Respondent completed a one-year master's degree program in counseling psychology. He calls himself a psychologist and represented to the court that he was a "psychologist with the University Associates in Psychiatry" in his testimony in M. v. M.

7. Although he is not a licensed psychologist, respondent is a member of the American Psychological Association (APA). As an APA member, he is bound by the APA's Ethical Principles of Psychologists. The version of the Ethical Principles in effect at all times relevant to the allegations in the charges was the version amended June 2, 1989. The Ethical Principles set the standard of care for respondent's professional conduct in this case, particularly since he calls himself a psychologist.

8. Respondent performed child custody evaluations in the late 1980's and early 1990's. In all, he did two or three dozen child custody evaluations.

9. The role of the evaluator performing a child custody assessment is to serve as a neutral third party who assists the parents and the court in reaching a custody arrangement that is in the best interest of the children.

10. During the fall of 1992 and winter of 1993, respondent conducted a child custody evaluation to determine which parent

should be awarded custody of two children in a divorce case, M. v. M., then pending in Family Court.

11. The divorce between L.M. (defendant wife) and T.M. (plaintiff husband) was a difficult case with a lot of emotional issues. Respondent should have exercised extra caution in working on such a case.

12. As part of his evaluation, respondent filed a written child custody assessment with the Family Court in February 1993. Respondent's report recommended that custody of the M.'s two children be granted to their mother, L.M., rather than to their father, T.M.

13. In April 1993, respondent testified in Family Court about his evaluation and report in M. v. M.

14. Respondent was paid a flat fee of \$1,200 to prepare his evaluation report in M. v. M. He spent 20 to 30 hours on the case. He would have charged \$2,000 to \$3,000 if he had been billing at his hourly rate at the time (\$100 an hour).

15. Respondent's expert witness, Dr. Stunkel, charges "top dollar" (\$5,000 to \$8,000) for child custody evaluations, because a "Cadillac" job is needed to prevent later lawsuits by disgruntled parents. To the extent a clinician does a cheap evaluation, that clinician has probably increased his or her risk of being sued later.

16. An evaluator should conduct home visits with the children. A clinician cannot evaluate sufficiently by observing the children playing games in the evaluator's office.

17. Respondent did not conduct home visits with the M. children. In addition, he never observed T.M. alone with the children. This, when coupled with the flat fee charged and the incoherent nature of the report produced, indicates that respondent did a less-than-thorough evaluation in the M. v. M. case.

18. Respondent proclaimed at the December 6 hearing that he thought he had been "a little soft" on T.M. in his evaluation.

19. During the hearings before the Board, respondent rolled his eyes and grimaced at any negative testimony about himself. He had to be admonished repeatedly not to coach his witnesses. He was aggressive and bullying toward the Board during his final round of testimony on January 7 (using a loud, angry,

contemptuous tone of voice and jabbing the air with his finger).

Count I Findings

20. Respondent regularly used space at the Montpelier offices of L.M.'s attorney, John Durrance, Esq., for work.

21. He used space at Durrance's offices for the M. case and for some other cases. He also used space at Durrance's offices for psychological testing.

22. In the M. case, respondent met with the M.'s two or three times in an office down the hall from Durrance's main law office. Susan Premo, a mediator, sublet this space from Durrance, but Durrance was the lessor.

23. It was hard for L.M. to meet with respondent in the space that Premo sublet from Durrance, because that space used to be her midwife's office. She and T.M. had gone there for meetings with the midwife. L.M. had an emotional reaction to using that space for divorce-related meetings.

24. Respondent met with the M.'s there to avoid their having to go all the way to Burlington to meet with him at his office.

25. Respondent worked at the same school, Union 32 High School (U-32), as the complainant, T.M.

26. T.M. taught English at U-32. Respondent worked as the school psychologist for the Washington Central Supervisory Union, of which U-32 is a part, for two days a week. His work consisted mainly of special education assessments for the school system.

27. Respondent heard things about T.M. from some of the staff at U-32, and what he heard there about T.M. influenced his custody evaluation.

28. Respondent's daughter had the complainant, T.M., as an English teacher during the 1991-92 school year, which ended just a few months before respondent began the M.'s custody evaluation. Respondent's daughter was in T.M.'s class for the entire school year (1991-1992), except for a six-week period when the class broke up into reading groups.

29. At one point before he completed his custody evaluation, respondent overheard his daughter and her friends talking about some teachers, including some uncomplimentary

remarks about T.M. Respondent's impression was that the girls thought that T.M. was "funny (not funny ha-ha)" and an "odd duck."

30. Respondent and L.M. both grew up in St. Johnsbury, but they never met while they lived there. There is a large age difference between respondent and L.M. In addition, respondent left St. Johnsbury in 1967.

31. Respondent discussed possible conflicts of interest (e.g., the U-32 connection, the St. Johnsbury connection) with the M.'s at their first meeting but left it up to the M.'s to decide if they wanted to proceed.

32. Respondent should have been more careful about working with clients like the M.'s, because of all the points of contact.

33. It is the therapist's duty to determine if conflicts of interest exist, not the client's duty.

34. Persons subject to the APA's Ethical Principles of Psychologists make every effort to avoid dual relationships that could impair their professional judgment or increase the risk of exploitation. This is the standard of care to which respondent is held.

35. Respondent repeatedly failed to practice up to standard in the M. case when he did not avoid three significant conflicts of interest: use of office space sublet from L.M.'s attorney, undertaking the evaluation while working at the same school as T.M., and proceeding with the evaluation when his daughter had recently had T.M. as a teacher.

Count II Findings

36. As part of his custody evaluation in the M. case, respondent gave L.M. and T.M. the Myers-Briggs Type Indicator (MBTI).

37. Respondent chose the MBTI for the M. case because he wanted a tool that would test the couple's interaction.

38. The MBTI is a test used to help people improve their ability to get along with each other and to communicate, especially in business organizations.

39. The information provided by the MBTI would be helpful in custody/divorce situations, because it would help couples to

better understand how they deal with each other and their children.

40. The MBTI may be appropriate for child custody cases if it is part of a battery of tests used. It would be inappropriate if it were the only instrument used.

41. Respondent did not use just the MBTI in the M. case. He also used another test, the Sixteen Personality Factor Questionnaire (16 PF).

42. There is no test that tells which person would be the better parent for purposes of a child custody evaluation.

43. There is no standard to indicate which tests should be used in child custody evaluations.

44. Lots of child custody evaluations include no tests, because the literacy level of the parents is too low to take tests. For example, one test used in child custody evaluations, the Minnesota Multiphase Personality Inventory (MMPI), requires an eighth grade reading level to complete.

45. Because there is no standard to indicate which tests should be used in child custody evaluations, because some evaluations include no tests at all, and because respondent used the MBTI in conjunction with another test (the 16 PF), respondent did not violate the standard of care when he used the MBTI as part of his child custody evaluation in the M. case.

Count III Findings

46. However, having chosen to use the MBTI (which was not, in and of itself, a violation of the standard of care), respondent then misinterpreted the test results and reported incorrect information to the court about the results and validity of the test. (Having found in Count II above that respondent's use of the MBTI, in conjunction with the 16 PF, was not inappropriate and was not a violation of the standard of care, the Board therefore makes no findings in this count on reporting information to the court about the appropriateness of use of the MBTI.)

47. In reporting assessment results, psychologists and other mental health clinicians indicate any reservations that exist regarding validity or reliability because of the circumstances of the assessment or the inappropriateness of the norms for the person tested. Psychologists and other mental

health clinicians strive to ensure that the results of assessments and their interpretations are not misused by others. This is the standard of care.

48. At pages 5-6 of his child custody assessment, respondent discussed sources of the psychological data he obtained on T.M. As presented, this information is confusing, because respondent failed to organize or arrange it in a way to inform the court how he reached his conclusions or from what sources he drew them.

49. Respondent found T.M. to be an ENFJ personality type according to the MBTI.

50. Respondent's description of T.M. as an ENFJ was taken almost verbatim from a published profile of that personality type, "Portrait of an ENFJ."

51. However, respondent distorted a key sentence in the "Portrait" in a way that reflected adversely on T.M. The "Portrait" says that ENFJ's tend not to be domineering and are even-tempered. In his assessment, respondent characterized T.M.'s type as sometimes domineering.

52. More specifically, in transferring information from the "Portrait" to his report, respondent began to change words and subtly alter emphasis. At page 6 of his report, respondent said that T.M.'s type "often is . . . deeply devoted to their children, yet sometimes domineering."

53. By contrast, the "Portrait of an ENFJ" at page 173 of Resp. Exh. 5 says that ENFJ's are "deeply devoted to their children, yet tend not to be domineering to either the children or a mate." This is very different from what respondent wrote in his report.

54. If respondent did not quote the "not" from the "Portrait of an ENFJ" because he adjusted his report for "fake-good" responding on the 16 PF (see findings below on "fake-good" responding), then he should have explained such an adjustment in his report.

55. Respondent violated the standard of care when he skewed the interpretation of the MBTI.

56. Respondent inserted two sentences relating to the 16 PF on page 6 of his report, but a reader who was not familiar with this test would not know that the information referred to the 16

PF. Respondent did not differentiate the information in any way from the previous sentences discussing the ENFJ type (which came from the MBTI).

57. The two sentences respondent wrote about the 16 PF were confusing, ungrammatical, and virtually incomprehensible. They were filled with unexplained psychological jargon, and they failed to mention the validity problems raised by T.M.'s responses, which, in turn, would have raised doubts about the credibility and validity of the results of the MBTI for T.M.

58. Defensive or "fake-good" responding occurs when individuals undergoing psychological testing alter their responses to disguise or minimize their psychopathology. This can occur in child custody evaluations because parents seeking custody would be highly motivated to present themselves in the most favorable light.

59. The 16 PF indicated there was a high likelihood of some distortion going on in T.M.'s test answers, because T.M.'s "fake-good" score on the 16 PF was high.

60. A high "fake-good" score on the 16 PF could distort the results of the MBTI as well. Respondent should have emphasized T.M.'s high "fake-good" score on the 16 PF more in his child custody evaluation presented to the court and should have said that it could have affected the MBTI results. Respondent should have educated the court more on the impact of high "fake-good" scores.

61. Respondent used the terms "polarity" and "polar traits" without explaining what those terms mean in the context of the 16 PF. The 16 PF factors are bipolar, so that both high and low scores on the factors have meaning. This is in contrast to other frequently used tests in child custody assessments such as the MMPI, in which, typically, only the high scores have meaning.

62. Respondent also used the term "tough poise" without explaining its meaning in the context of the 16 PF. For example, a person scoring high on "tough poise" is aloof, hard, decisive, realistic and perhaps insensitive to the feelings of others. A person scoring low on "tough poise" is too easily disrupted by his or her emotions, may be artistic, and may not be carefully controlled by reality. Respondent explained none of this.

63. Respondent began his two sentences about the 16 PF abruptly by talking about "second order scores." He never explained what "second order scores" are, even though, in the 16

PF, second-order factors are very important and describe broader aspects of human personality than do the original 16 factors that the developer of the test extracted from his research.

64. Karson and O'Dell, in Resp. Exh. 21 at 546-548, explain what is entailed in a thorough interpretation and presentation of a 16 PF profile. Respondent's two sentences fell far short of their method.

65. Respondent's presentation at pages 5-6 of his report of the results of his psychological testing of T.M. are a jumble of unexplained terms and professional jargon in relation to the 16 PF and contain at least one major distortion of information in relation to T.M.'s MBTI personality type.

66. The net result for any reader (in this case, the court) without training in psychological testing is confusion and misinformation.

67. Even respondent's expert, Dr. Stunkel, admitted that respondent's clinical summary paragraph in his report at pages 5-6 was confusing and unclear as to what data bases respondent was using and what he was interpreting in any given sentence.

68. Respondent's report to the court presented the test data from the MBTI and the 16 PF as though it buttressed his observations and impressions from personal interviews, when, in fact, the data did not do so. For example, the ENFJ description from the "Portrait" did not support what respondent said about T.M. in his report.

69. Respondent should not have relied on paper-and-pencil tests such as the MBTI so heavily, especially in light of T.M.'s high "fake-good" scores on the 16 PF.

70. Respondent's report was virtually "laid upon the back" of the MBTI and elevated supposed results to hard evidence. Forensic evaluation requires a higher standard.

71. Respondent also failed to discuss the strengths and weaknesses of the tests he used. This was an important gap in the report, because all personality tests have both strong and weak points. An evaluator must be honest with the court and tell the court that these instruments are not perfect.

72. This is especially true in forensic work, because there is no one good test for child custody evaluations. Therefore, it is important to address a test's flaws in any report to the

court.

73. Furthermore, self-reporting inventories (such as the MBTI) are good only to the extent the test-taker is honest and has good self-insights. Respondent explained none of this to the court.

74. In addition to respondent's failure to mention and explain validity issues in his report, there were other problems with respondent's findings that could have misled the court.

75. Respondent's description of L.M. in the evaluation was much more positive than that of T.M., although L.M.'s test results indicated more problems with L.M. than T.M.'s test results did with T.M. It appears as though respondent's meetings with L.M. and T.M. left him with a more positive impression of L.M. than of T.M. Respondent then tried to support his observations with the test results.

76. Respondent distorted the personality profiles of T.M. and L.M. He selected bits and pieces of interpretive sources and used only those he wanted. He seemed to select characteristics unflattering to T.M. and more flattering to L.M.

77. For example, when respondent testified about idealism in relation to T.M., Resp. Exh. 17 at 422-423, he cast the attribute in a negative light. When respondent testified about idealism in relation to L.M., *id.* at 432, he cast that attribute in a positive light.

78. Respondent's failure to uphold the standard of care is a gross failure, because composition of his report and subsequent court testimony about the report showed more than a mere error of judgment, momentary inattention, or loss of presence of mind. Preparation of his report and testimony required time and deliberate thought, followed by, in the case of the report, committing those thoughts to paper, in writing.

Count IV Findings

79. The M. case was complex, and respondent "was in over his head," as illustrated by his extremely cursory and confusing discussion of the 16 PF in his report to the court.

80. As found above, respondent also misinterpreted the MBTI results and reported incorrect information to the court about the results and validity of the MBTI.

81. However, there is no evidence that respondent misinterpreted the MBTI results and reported incorrect information about the MBTI results intentionally or by design. He was attempting to function beyond his capability in matters of psychological testing. This was further complicated by the less-than-thorough nature of the evaluation he provided.

Count V Findings

82. During the child custody evaluation, respondent met with L.M., T.M., and the children in various combinations, but he never met with just T.M. and the children.

83. An attempt to arrange a meeting among respondent, T.M., and the children was made indirectly when John Durrance, Esq., (L.M.'s attorney) wrote to L.M. Durrance told L.M. in the letter that he was using the letter as notice to T.M.'s attorney (Alan Rome, Esq.) that a meeting among respondent, T.M., and the children has been scheduled. Durrance sent a copy of the letter to Rome.

84. Such notice was ineffective, because T.M. never heard about the scheduled meeting and did not meet with respondent and the children.

85. The standard of care is that a child custody evaluator should observe each parent separately interacting with the children at least once.

86. Respondent had a duty to make sure that he met with T.M. and the children without L.M. being present. This duty was especially great in the M. case in view of how his evaluation was going to turn out (i.e., with a recommendation that L.M. be the custodial parent).

87. Respondent should have at least attempted to be fair by meeting with T.M. and the children. He could not discharge his duty by allowing arrangements for such a meeting to be made solely by an indirect and ineffective method of communication. He should have made sure himself that the meeting was scheduled and should have seen to it that the meeting actually took place as an integral part of his custody evaluation.

88. By not meeting with T.M. and the children, respondent grossly failed to uphold the standard of care. His failure in this regard showed indifference to the duty he owed the M. family and the court.

Count VI Findings

89. In April 1993, respondent testified about his evaluation at the M.'s divorce/custody hearing in Washington Family Court.

90. Respondent testified that, as part of his evaluation, he acquired information from third party informants to support the accuracy of his assessment.

91. Specifically, respondent testified that he acquired information from four mental health clinicians in the Central Vermont area who had been involved with the M. family.

92. One of the four clinicians, Anne Unangst, has no recollection of being contacted by respondent about the M. case but cannot say for certain that she did not talk to him about it.

93. Another of the four clinicians, Robert Buchicchio, did have some contact with respondent when respondent referred L.M. and T.M. to him for couples counseling. Buchicchio later had a brief exchange with respondent to report that, after two sessions with L.M. and T.M., he had no input to contribute on decisions relating to child custody.

94. Another of the four clinicians, Lynn Phillips, has no specific recollection of being contacted by respondent about the M. case but cannot say for certain that such contact did not occur.

95. The only evidence relating to the fourth clinician, Brian Lewis, is respondent's recollection that he did contact Lewis and respondent's undated handwritten note indicating that he talked to Lewis by phone about T.M. Lewis did not testify in this proceeding and did not provide any written information about his contact with respondent regarding the M. case.

96. The evidence is inconclusive on this count. Two of the four clinicians do not clearly remember whether they did or did not discuss the M. case with respondent. The third clinician does recall that he did not provide any input on child custody matters. The fourth clinician did not provide any information at all in this proceeding, leaving respondent's testimony and note as the only evidence in the record.

Count VII Findings

97. In his report to the Family Court, respondent indicated

that he had received information from third party informants.

98. In his court testimony, respondent elaborated that he acquired information from third party informants to support the accuracy of his assessment, in particular his personality profile of T.M.

99. Respondent also told the court that he obtained information supporting his personality profile of T.M. from four mental health clinicians in the Central Vermont area who had been involved with the M. family.

100. The next question posed to respondent, when combined with his answer, indicated further that the four clinicians described T.M. in a way that fit with respondent's personality profile of T.M. and that the profile was very accurate when checked against the information provided by the four clinicians.

101. The impression given by respondent's report and testimony is that his personality profile of T.M. was firmly supported by four other mental health care professionals.

102. The impression is misleading. Two of the four clinicians cannot remember for certain whether they discussed the M. case with respondent. One of the four (Buchicchio) specifically remembers that he provided no input on child custody issues. The only evidence relating to the fourth clinician (Lewis) is respondent's undated note indicating that he had a phone conversation with Lewis about T.M. The note is too brief to indicate whether Lewis supported respondent's personality profile of T.M.

103. Courts in Vermont rely heavily upon child custody evaluation reports and accompanying testimony of the evaluators, because such evaluations and expert testimony save the courts much time and effort in making difficult decisions regarding custody of children of divorcing parents.

104. Because Vermont courts rely heavily upon the information so presented to them, evaluators must scrupulously avoid skewing or misrepresenting the information in their reports in any way. This is the standard of care.

105. For respondent to have presented misleading information about the extent and nature of support from other clinicians in his sworn testimony in court is a gross violation of the standard of care. Respondent's actions were more than a mere error of judgment, momentary inattention, or loss of presence of mind. He stated in his report that he had obtained

information from third party informants, then he elaborated on the point when testifying by presenting misleading information about the nature and extent of support provided by the four clinicians. He did this after having been sworn to tell the truth.

Count VIII Findings

106. At the M. divorce/custody hearing, respondent was asked in relation to T.M., "And were you advised of any incidents within the school that indicate inflexibility or dominance by him?"

107. Respondent answered, "Throughout Mr. [M.'s] teaching career there have been some incidents that the school would document as being somewhat rigid in interpretation on his part, yes." The examiner did not ask for any further elaboration but went on to another topic.

108. Respondent's answer to the question was incorrect and misleading. A reasonable person listening to the question and answer would infer that respondent had reviewed documents while they were in school files and that the incidents occurred over a considerable period of time. The cumulative effect on the listener would be an impression that the incidents were numerous and substantial.

109. What actually happened was that respondent was advised of some difficulties T.M. had had with a special education student over a recycling program matter, but respondent was told that by L.M., and L.M. heard it from T.M.

110. L.M. was not a third party informant, which was what the questioner inquired about, but rather was the defendant in the M. divorce action.

111. The documentation respondent was referring to in his testimony was in T.M.'s school personnel file. It consisted of two letters, both dated in 1991.

112. The first letter, dated January 30, 1991, was from T.M. to the U-32 principal. In the letter, T.M. alluded to attempted resolution of the problems he had had with the special education student, outlined three concerns needing further discussion, and concluded that he hoped the matter could be resolved amicably and promptly.

113. The second letter, dated August 19, 1991, was another

letter from T.M. to the U-32 principal. In the letter, T.M. informed the principal that he was going to take a less active role in the school recycling program during the next school year. T.M. suggested alternatives for continuing the program and thanked the principal for his support of the program.

114. These two letters from 1991 cannot reasonably be interpreted to constitute incidents extending throughout T.M.'s 20-year teaching career.

115. In addition, these were letters that T.M. wrote to the school himself and were not negative evaluations that someone else had submitted for inclusion in T.M.'s personnel file.

116. Respondent's misleading testimony was willful (i.e., intentional or by design), because he was testifying under oath in court as an expert about his work product. His remarks were deliberate and were not spontaneous utterances made under duress or surprise.

Count IX Findings

117. Respondent did not obtain information about T.M.'s teaching career by examining T.M.'s school personnel file.

118. Instead, respondent obtained information second-hand, from other sources. In particular, respondent received information about T.M.'s teaching career from L.M., who was not a neutral, disinterested person. L.M. was the defendant in the M. v. M. divorce action.

119. Furthermore, by the time respondent testified in court, he had received a long letter from T.M. that was highly critical of respondent's conclusions and recommendation that L.M. be granted custody of the M. children. A reasonable conclusion to draw from this would be that respondent was somewhat antipathetic to T.M. by the time of the court hearing.

120. During his testimony in court, respondent further embellished the notion of T.M.'s rigidity by emphasizing that when disagreed with, T.M. "becomes less flexible." In response to questioning, respondent further opined that this personality characteristic made it difficult for T.M. to cooperate with L.M.

121. Respondent's testimony was misleading, because it distorted the information respondent obtained about T.M.'s teaching career and then inflated the accuracy and reliability of that information by expanding it into a general personality characteristic.

122. Courts in Vermont rely heavily upon child custody evaluation reports and accompanying testimony of the evaluators, because such evaluations and expert testimony save the courts much time and effort in making difficult decisions regarding custody of children of divorcing parents.

123. Because Vermont courts rely heavily upon the information so presented to them, evaluators must be extremely careful to present accurate information to the courts and to clarify and explain precisely where and how they obtained the information they present.

124. As practitioners, psychologists know that they bear a heavy social responsibility because their recommendations and professional actions may alter the lives of others. They are alert to personal, social, organizational, financial, or political situations and pressures that might lead to misuse of their influence.

125. This ethical principle translates into a standard of care that prohibits the provision of misleading or distorted information in a child custody evaluation that may alter the lives of others and where the influence of the evaluator's opinion on the court may be considerable.

126. For respondent to have presented misleading information about the sources of his information in his sworn testimony in court is a gross violation of the standard of care. Respondent's actions were more than a mere error of judgment, momentary inattention, or loss of presence of mind. As an expert witness, he had time to prepare, review, and reflect upon his testimony before the hearing. His embellishment of his evaluation methodology was a distortion of the truth.

Count X Findings

127. Count X is a "catch-all" count designed to ensure that a tribunal finds at least a repeated violation of the standard of care.

128. In light of the violations which the Board did find in other counts, Count X is surplusage and should be dismissed.

Conclusions of Law

A. (Count I(1)-(3)) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. §

129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he failed to use and exercise on repeated occasions that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

B. (Count III) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

C. (Count V) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

D. (Count VII) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

E. (Count VIII) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(7) (formerly 26 V.S.A. § 3271(b)(2)), in that he willfully made or filed false reports or records in the practice of the profession.

F. (Count IX) By his actions, respondent has committed unprofessional conduct as set forth in 3 V.S.A. § 129a(a)(10) (formerly 26 V.S.A. § 3271(b)(11)), in that in the course of practice he grossly failed to use and exercise on a particular occasion that degree of care, skill and proficiency which is

commonly exercised by the ordinary skillful, careful and prudent professional engaged in similar practice under the same or similar conditions, whether or not actual injury to a client has occurred.

Opinion

Prehearing Motions

Respondent's First Motion to Dismiss

Prior to hearing, respondent filed three motions to dismiss and an objection to amended charges. The first motion to dismiss alleged that the State cited the wrong statutes in its notice of charges. The State amended the charges to correct the problem, and this motion to dismiss was denied by an entry regarding motion dated July 6, 1999.

Respondent's Second Motion to Dismiss (Laches)

Respondent's second motion to dismiss all charges raised the defense of laches, arguing that the length of time between the filing of the complaint (October 1994) and the filing of charges (May 1999) was unreasonably long and resulted in witness inability to reconstruct exact conversations at hearing.

Respondent, as the party asserting laches, has the burden of proof on the issue. See Turner v. Turner, 131 Vt. 253, 257, 305 A.2d 592 (1973). Respondent must prove not only that there was an unreasonable and inexcusable delay, but also that the delay disadvantaged him. Id. Respondent has not proved either prong of the test.

The facts show that the delay between complaint and charges was unavoidable. Because respondent is well-known throughout the Vermont mental health care community, Board members who would customarily serve on either the Investigating Committee or the Hearing Panel recused themselves. Replacements who did not know respondent had to be found. Some of the witnesses moved out of the state. Transcripts had to be obtained from the M.'s divorce proceeding in court. All of these circumstances added time to the investigation of this already complex case.

The delay did not significantly affect the state of the documentary evidence needed for this proceeding. Because the complaint was filed within two years of respondent's completion of the M. custody evaluation, respondent had notice fairly soon after completing his work on the evaluation that there would be a

need to produce records and documentation to defend against the complaint. Thus, respondent's records of the M. custody evaluation were available to the parties in this case, as were court transcripts and school records.

The unavoidable delay in filing charges meant that respondent had to wait in suspense for approximately five years to see exactly how the charges against him would read. During this time, the investigation of his case remained confidential under 3 V.S.A. § 131(c)(2)(B). Other than having to live for five years in suspense about the outcome of the investigation, respondent pointed to no way in which the delay disadvantaged him. He did not show that his professional reputation suffered or that he lost his job, family, friends, or life savings because of the lengthy investigation this case entailed.

The only witnesses whose recollection of events surrounding respondent's custody evaluation were significantly dimmed by the passage of time were several of the mental health professionals who were the focus of Count VI in the charges. However, the outcome of this matter does not hinge on their testimony. Since the Board does not find the allegations of Count VI proved, the inability of these witnesses to remember events in 1992-93 does not work to respondent's disadvantage in this case.

Respondent's Third Motion to Dismiss

Respondent's third motion to dismiss argued that the State's expert witness (Dr. Levine) was unprepared or unwilling to offer an opinion supporting the charges.

Regardless of whether or not it heard expert witness testimony, "[a]s a body composed primarily of . . . professionals, the Board has the power to apply its own expertise in evaluating the evidence." Braun v. Board of Dental Examiners, 167 Vt. 110, 115, 702 A.2d 124 (1997). In any event, Dr. Levine did offer testimony at hearing relating to the standard of care in child custody evaluations, opining, among other things, that respondent violated the standard of care by skewing his interpretations of the MBTI and that his two-sentence remarks about results of another test (the 16 PF) in his evaluation report fell below the standard of care.

Respondent's Objection to Amended Charges

Respondent's objection to amended charges argued that the charges were filed too close in time to the November 18 hearing to permit him to respond adequately. The Board heard argument on

this objection at the November 18 hearing, deliberated, and denied the objection.

Under Office of Professional Regulation Administrative Rules of Practice 3.6(F), amendments may be allowed if they do not unreasonably adversely affect the rights of a party. In this case, the amendments to the charges did not require additional witnesses or extensive additional preparation to defend. The number of counts increased from six to ten, with Count X being a "catch-all" count summarizing all previous counts.

The modifications to the other counts primarily involved two types of changes: (1) insertion of language to include both the gross and repeated aspects of violations of the standard of care under the statute, or (2) adding counts to charge under a different statute facts already alleged (akin to the practice of multiplicity in criminal prosecution). Because the substance of the charges did not change substantially from May 1999, when the original charges were filed, to the November filing of the second amended charges, the Board determined that respondent was not unreasonably adversely affected by the amendments and denied the objection.

Hearing

The statutory standard of care in a professional licensing case has been definitively set forth in Braun v. Board of Dental Examiners, 167 Vt. 110, 702 A.2d 124 (1997). In Braun, the Court stressed that "grossly negligent conduct is more than a mere error of judgment, momentary inattention, or loss of presence of mind. . . . Rather, it is the failure to exercise even a slight degree of care and an indifference to the duty owed." Id. at 113-114 (citations omitted).

The Court went on to note, "We have acknowledged, however, that there is no clear dividing line between ordinary and gross negligence; whether certain behavior was grossly negligent hinges on the particular circumstances of the case. . . . Because such a finding requires applying the facts to a reasonableness standard, we defer to the fact finder's ability to determine whether particular behavior rose to the level of gross negligence." Id. at 114 (citations omitted).

Here, the inescapable conclusion to be drawn from the facts is that respondent's child custody evaluation in M. v. M. grossly violated the standard of care. Respondent's written report and court testimony were not done on the spur of the moment. They were prepared and delivered in written (report) and oral

(testimony) form after respondent had the time and opportunity to reflect on what he would say, on what information he would convey, and on how he would convey it. For him to provide misleading information as he did was a betrayal of the trust his clients and the court placed in him.

The Court has defined "willful" as denoting "intention and that that means 'by design.'" State v. Parenteau, 153 Vt. 123, 125, 569 A.2d 477 (1989).

In this case, respondent's misconduct was willful when he created the misleading impression in his court testimony that he had examined T.M.'s school personnel files and thereby cloaked his evaluation with an enhanced aura of authority. Again, respondent's testimony was not given off-the-cuff. He had already prepared a written report, and he had time to prepare for and reflect upon the testimony he would give in court several months later. The questions he was asked were not a surprise to him. He had done dozens of other child custody evaluations and was not a neophyte. He chose his words intentionally and by design, and they were misleading.

As a child custody evaluator, respondent had a special duty to testify and evaluate with scrupulous care before the court. The obligation was increased by the entanglements found in Count I. Respondent should have been extra careful in this case in preparing his report and testimony. He was not.

He undertook the evaluation despite several dual relationships inherent in the case (meeting with the clients in office space leased by the attorney of the defendant wife, working at the same school as the plaintiff husband, his daughter having had the plaintiff husband as a teacher). Rather than exercising his own professional judgment, respondent left it up to the M.'s to decide whether to proceed with the evaluation. Pushing this responsibility onto his clients was a failure to uphold professional ethical standards and made a difficult situation for the M.'s more painful.

In addition, respondent was not careful to pursue a completely impartial approach in his evaluation. For example, he did not make sure that he observed T.M. alone with the children, as he did with L.M.

Even more disturbing, he subtly distorted information to leave inaccurate implications when he testified in court. He implied in his testimony that he had seen school documents when he had not. He testified in court about receiving information

from third party informants in a manner that exaggerated the amount and extent of support that information provided for his conclusions. In short, he acted in a way that was not accountable to his client's or the court's trust in him.

Finally, in assessing respondent's credibility and determining what weight to give his testimony, the Board takes into account respondent's attitude and demeanor throughout the proceedings. In evaluating credibility, the Board may consider such factors as demeanor, mannerisms, and tone of voice, in addition to the quality of the testimony itself. In re Annette Lynch, M.D., No. AO-MP01-0896 (Vt. Sec. of State, Appellate Officer, Jan. 16, 1998) at 17 (citing State v. Hagen, 151 Vt. 64, 65, 557 A.2d 493 (1989)).

Respondent's arrogance was astounding. He never acted as though he understood that it was possible that he might have erred in any way. (Indeed, he proclaimed at the December 6 hearing that he thought he had been "a little soft" on T.M. in his evaluation.) He rolled his eyes and grimaced at any negative testimony about himself. He had to be admonished repeatedly not to coach his witnesses. He was aggressive and bullying toward the Board during his final round of testimony on January 7 (using a loud, angry, contemptuous tone of voice and jabbing the air with his finger). His words and bearing throughout the hearings clearly communicated to all that he thought the proceedings were a farce. Such behavior reflects poorly on his ability to conduct himself in an ethical and professional manner and has a negative impact on his credibility and on the weight of his testimony.

Order

IT IS HEREBY ORDERED by the Board of Allied Mental Health Practitioners of the State of Vermont that:

1. Respondent's motion to dismiss on grounds of laches is hereby DENIED.
2. On the basis of the findings of fact and conclusions of law, Counts I(4), II, IV, VI, and X are hereby DISMISSED.
3. On the basis of the findings of fact and conclusions of law, respondent's license is hereby SUSPENDED for a period of six months from the effective date of this order.
4. On the basis of the findings of fact and conclusions of law, respondent's license is hereby CONDITIONED as follows:

(a) Within one year from the effective date of this order, respondent shall successfully complete, in a didactic setting, a graduate-level course in professional ethics, approved by the Board or its designee, and shall furnish proof of successful course completion to the Board.

(b) For a period of three years from the effective date of this order, any child custody evaluations which respondent undertakes must be performed under the supervision of a practitioner licensed at the psychologist-doctoral level and with substantial experience in child custody evaluations for courts.

5. The conditions imposed by this order shall remain in effect until removed by the Board. Violation of any of the conditions imposed by this order may result in further discipline, including revocation of respondent's license.

6. Respondent shall bear all costs of compliance with this order.

7. Pursuant to 3 V.S.A. §§ 129(a)(8) and 131(c)(2)(C), this document is a public record and may be provided to other licensing authorities.

8. This order takes effect as of the date of entry shown below.

Appeal Rights

This is a final administrative determination. A party may appeal by filing a written notice of appeal with the Director of the Office of Professional Regulation, Office of the Secretary of State, within 30 days of the effective date of this order.

Dated: 3/10/06

BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

By: Lauren G. Berrizbestia
Lauren G. Berrizbestia
Hearing Panel Chair

Date of entry: 3-13-00